

Matseti Santhoshi Gude Santhoshi, vs Gude Lahari Krishna, on 15 September, 2025

APHC010215052025

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

MONDAY, THE FIFTEENTH DAY OF SEPTEMBER
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 156/2025

Between:

1. MATSETI SANTHOSHI @ GUDE SANTHOSHI,, W/O SRI GUDE LAHARI KRISHNA, D/O SRI MATSETI SIVA, AGE 26 YEARS, OCC HOUSE WIFE, R/O D.NO. 102-2-310, MURALIKONDA, BOMMURU - 533 124, RAJAHMUNRY RURAL MANDAL, EAST GODAVARI DISTRICT

...PETITIONER

AND

1. GUDE LAHARI KRISHNA, S/o Sri Babu Rao, Occ Chip Engineer in Samsung Company, R/o House No. 43, Mani Vani Nilayam, Ashoka Layout, Opp 7 Hill Hotel, Marathahalli, Bangalore - 560 037 State of Karnataka

...RESPONDENT

Petition Under Section 24 of the C.P.C. Praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to transfer the case in F.C.O.P.No. 335 of 2025 pending on the file of the Additional Family Judge Court, Visakhapatnam to the Family Judge Court at Rajamahendravaram in the interest of justice

IA NO: 1 OF 2025

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to grant stay of all further proceedings in F.C.O.P.No. 335 of 2025 pending on the file of the Additional Family Judge Court, Visakhapatnam, pending disposal of the present Tr. C.M.P

Counsel for the Petitioner:

1. N SIVA REDDY

Counsel for the Respondent:

1.

The Court made the following:

ORDER:

Today, when the matter has been taken up for hearing, Sri N. Siva Reddy, learned counsel for the petitioner has submitted that, proof of service Memo has been filed before the Registry, dated 15.09.2025, along with the Postal Track Consignment Sheet downloaded from the Postal Department Website and the same is placed on the record. As per the Postal Track Consignment Sheet, the registered notice sent to the respondent was served on him on 04.09.2025. Despite service of notice, there is no representation on behalf of respondent. Therefore, „service held sufficient .

2. The petitioner/wife herein filed the present petition under Section 24 of the Code of Civil Procedure, 1908, (for short „the C.P.C.) seeking for transfer of F.C.O.P.No.335 of 2025 on the file of the Additional Family Judge Court at Visakhapatnam, to the file of the learned Judge, Family Court, Rajamahendravaram, East Godavari District, for trial.

3. The case of the petitioner in brief is as follows:

I. The petitioner is legally wedded wife of the respondent/husband and their marriage was performed on 18.04.2024, in the presence of elders and relatives of both the parties, at Annavaram Temple, as per the Hindu Rites, Caste and Customs. After that, due to the matrimonial disputes between both the spouses, the petitioner/wife has been residing separately and depending upon the mercy of her parents at Rajahmundry, East Godavari District.

II. The petitioner/wife further pleaded that, in view of the harassment made by the respondent/husband, the petitioner/wife lodged a complaint against the

respondent/husband dated 02.12.2024, which was registered as F.I.R.No.141 of 2024, for the offences punishable under Sections 85, 351(2) r/w 3(5) of B.N.S. Act, 2023 and Sections 3 & 4 of the Dowry Prohibition Act, 1961, before the Disha Mahila Police Station, Rajahmundry, East Godavari District and the same is pending for investigation. The petitioner/wife further pleaded that, she has filed a Domestic Violence Case vide D.V.C.(SR)No.1072 of 2025 on the file of the VI Additional Judicial Magistrate of First Class, Rajahmundry, East Godavari District and the same is also pending for adjudication.

III. Learned counsel for the petitioner would further contend that to cause inconvenience to the petitioner/wife, the respondent/husband had filed F.C.O.P.No.335 of 2025 on the file of the Additional Family Judge Court at Visakhapatnam, under Section 12(1)(c) of the Hindu Marriage Act, 1955, for declaring the marriage between both the parties as null and void and the same is also pending for adjudication. IV. Learned counsel for the petitioner would further contended that the petitioner being a woman, has been residing separately and depending upon the mercy of her parents at Rajahmundry, the distance between Rajahmundry and Visakhapatnam is more than 200Kms, it is very difficult for her to travel to attend the case proceedings before the Court at Visakhapatnam without any male assistance and that she was constrained to file the present petition against the respondent/husband herein, seeking for transfer of F.C.O.P.No.335 of 2025, on the file of the Additional Family Judge Court at Visakhapatnam, to the file of the Judge, Family Court, Rajamahendravaram, East Godavari District.

4. Heard Sri N. Siva Reddy, learned counsel for the petitioner.

5. Though registered notice sent to the respondent was served on him, none appeared for the respondent. Therefore, „service held sufficient .

6. Perused the material available on record.

7. The material on record prima facie goes to shows that, in view of the matrimonial disputes between both the spouses, the petitioner/wife has been residing separately and depending upon the mercy of her parents at Rajahmundry and she has instituted two cases against the respondent/husband herein i.e., a Criminal Case under Sections 85, 351(2), r/w 3(5) of B.N.S. Act, 2023 and Sections 3 & 4 of the Dowry Prohibition Act, 1961, before the Disha Mahila Police Station, Rajahmundry, East Godavari District and she also filed a Domestic Violence Case vide D.V.C.(SR)No.1072 of 2025 on the file of the VI Additional Judicial Magistrate of First Class, Rajahmundry, East Godavari District, the same are pending for adjudication and the respondent/husband herein also attending the Court proceedings before the competent Court at Rajahmundry, East Godavari District. The material on record further discloses that, the respondent/husband had filed F.C.O.P.No.335 of 2025 on the file of the Additional Family Judge Court at Visakhapatnam, under Section 12(1)(c) of the Hindu Marriage Act, 1955, for declaring the marriage between both the spouses as null and void and the same is also pending for adjudication.

8. The Apex Court in a case of GEETA HEERA Vs HARISH CHANDER HEERA¹, held by considering the fact that "if a wife does not have sufficient funds to visit the place where the divorce petition is filed by her husband, then the transfer petition filed by the wife may be allowed."

9. The Apex Court in a case of N.C.V. Aishwarya Vs A.S.Saravana Karthik Sha² held as follows:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic

soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and (2000) 10 SCC 304 2022 LiveLaw (SC) 627 subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

10. On considering the submissions made by the learned counsel for the petitioner and in view of the ratio laid down in the aforesaid case laws that in matrimonial proceedings, the convenience of the wife has to be taken into consideration than that of the inconvenience of the husband. Therefore, I am of the considered view that, there are justifiable grounds to consider the request made by the petitioner/wife seeking for transfer of F.C.O.P.No.335 of 2025, on the file of the Additional Family Judge Court at Visakhapatnam, to the file of the Judge, Family Court, Rajamahendravaram, East Godavari District.

11. In the result, the present Transfer Civil Miscellaneous Petition is allowed and the F.C.O.P.No.335 of 2025, on the file of the Additional Family Judge Court at Visakhapatnam, is hereby withdrawn and transferred to the file of the Judge, Family Court, Rajamahendravaram, East Godavari District. The learned Additional Family Judge Court at Visakhapatnam, shall transmit the case record in F.C.O.P.No.335 of 2025, to the file of the Judge, Family Court, Rajamahendravaram, East Godavari District, duly indexed as expeditiously as possible, preferably within a period of two (02) weeks from the date of receipt of a copy of this order. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim Order granted earlier, if any, shall stand closed.

15.09.2025 CVD JUSTICE V. GOPALA KRISHNA RAO Date: